

24SMCV03656 24SMCV03656

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Case Number: 24SMCV03656 Hearing Date: August 24, 2026 Dept: M

CASE NAME: Pink, et al.,

v. Pink

CASE NO.: 24SMCV03656

HEARING DATE: 8/21/2026

MOTION: Motion by Partition Referee for Confirmation of Sale

Legal

Standard

Partition is the procedure for segregating and terminating common interests in the same parcel of property. (Summers v. Superior Court, (2018) 24 Cal.App.5th 138, 142.) The manner of partition may be in kind — i.e. physical division of the property — or by sale. (Id.)

The Court may appoint a referee for sale. (CCP § 873.020.) The referee may perform any acts necessary to exercise the authority conferred by order of the court. (CCP § 873.060.) The referee must post a notice of sale that includes a description of the property, the time and place of sale, and a statement of the principal terms of the sale. (CCP §§ 873.640(a), 873.650(a).)

Upon making a sale of the property, the referee shall report the sale to the court. (CCP §873.710(a).) The referee's report shall contain, in addition to such other information as may be

appropriate, (1) a description of the property sold to each purchaser, (2) the name of the purchaser, (3) the sale price, and (4) the terms and conditions of the sale and security, if any, taken. (CCP §873.710(b).)

The referee, or any other interested party, may then move the court to confirm or set aside the sale. (CCP § 873.720(a).) The moving party must give at least 10 days' notice to the purchaser and all other parties who have appeared in the action. (CCP § 873.720(b).) At a hearing to confirm the sale, the court shall examine the referee's report and witnesses in relation to the report. (CCP § 873.730(a).) The Court may confirm the sale notwithstanding a variance from the prescribed terms of the sale if to do so will be beneficial to the parties and will not result in substantial prejudice to persons interested in the sale. (CCP § 873.730(b).) The Court may vacate the sale and direct that a new sale be made if it determines any of the following: (1) The proceedings were unfair or notice of sale was not properly given; (2) the sale price is disproportionate to the value of the property; or (3) a new sale will yield a sum that exceeds the sale price by at least 10 percent on the first ten thousand dollars (\$10,000) and 5 percent on the amount in excess thereof, determined after a reasonable allowance for the expenses of a new sale. (CCP § 873.730(c).) If at the hearing, a responsible bidder makes a written increased offer that exceeds the sale price by at least 10 percent on the first ten thousand dollars and 5 percent on the amount in excess thereof, the court in its discretion may (1) vacate the sale and direct that a new sale be made or (2) vacate the sale, accept the increased offer, and confirm the sale to the offeror. (CCP § 873.740(a).)

Upon confirmation of a sale, the Court shall order the referee to execute a conveyance or other instrument of transfer, to collect the proceeds, take security, and perform other acts required to consummate the sale. (CCP § 873.750(a).) Where the purchaser is a party or lienholder entitled to a share of the proceeds of sale, the referee may: (a) Take the purchaser's receipt for so much of the proceeds of sale as belongs to the purchaser; (b) Take security, or other arrangement satisfactory to the referee, for payment of amounts which are or may become due from the purchaser on account of the expenses of sale, general costs of the action, and costs of the reference. (CCP § 873.770.) Upon fulfillment of the terms of sale, the referee shall execute a conveyance or other instrument of transfer to the purchaser. (CCP § 873.790(a).) The conveyance or transfer of real property and the order authorizing such conveyance or transfer shall be recorded in each county in which the property is located. (CCP §873.790(b).) Proceeds

of sale for any property sold shall be applied in the following order: (a) payment of the expenses of sale; (b) payment of the other costs of partition in whole or in part or to secure any cost of partition later allowed; (c) payment of any liens on the property in their order of priority except liens which under the terms of sale are to remain on the property; and finally (d) distribution of the residue among the parties in proportion to their shares as determined by the court. (CCP § 873.820.)

ANALYSIS

Partition Referee Matthew L. Taylor moves to confirm the sale of the subject real property in this action for partition, located at 1725 Main Street, Santa Monica, CA 90401.

Referee demonstrates a properly noticed partition sale. Referee hired qualified real estate agents Hilda Hernandez of brokerage Berkshire Hathaway HomeServices California and Kevin Krakower and Simon Salloom of Douglas Elliman. (Taylor Decl., ¶ 3.) The Property was listed through industry-standard methods including in the residential multilisting service and online resources. (Id.) Multiple open houses and a broker caravan were held. (Id.) The sale was advertised as a legal notice in the Los Angeles Daily Journal on 12/19/2025, 12/26/2025, and 1/2/2026. (Id., ¶ 3.a, Ex. 3.) Notice was given via mail to each owner. (Id., ¶ 3.b, Ex. 4.) Notice was posted at the entrance of the Property and on two adjacent telephone poles on December 17, 2025. (Id., ¶ 3.c, Ex. 5.)

Referee shows that the sale was regularly conducted. Referee received offers from three different buyers, all below the listing price of \$3,900,000. (Id., ¶ 5.) Following a series of bids and counter-bids between multiple potential buyers, the two remaining offers at \$3,350,000 were in competition with each other. (Id.) Referee selected Plaintiff Pink Jr.'s offer as the better offer, because it included a full removal of all contingencies whereas the third-party offer was contingent on the sale of that buyer's other property and because Plaintiff's offer carries a lower buyer's agent commission (1.0% versus 2.5%) resulting in greater net proceeds to the estate. (Id.) Referee thus accepted the highest net offer, without contingencies, "as-is". (Id., ¶6.) Referee provides the full terms of the counter-offer by Pink Jr. (Id., Ex. 1.)

Referee considered Defendant Pink

III's objections to the listing price and supporting appraisals. (Id., ¶ 7.) Referee found that the supporting appraisals were unpersuasive. (Id.) In the abundance of caution, Referee commissioned an independent appraisal with an appraiser who has no connection to either party to this action, who inspected the house and appraised it at a value of \$3,600,000. (Id., ¶ 7.) Ultimately, the open market only supported the \$3.35 million price. (Id., ¶ 8.)

The Court

does not find any grounds to vacate the sale. There is no evidence that the proceedings were unfair or notice of sale was not properly given, that the sale price is disproportionate to the value of the property, or that a new sale will yield a higher net sum, let alone a sum of \$3,517,000.00 less the costs of a new sale.

Accordingly, the motion is GRANTED.